

ASCII MASTER FLOW – PANEL 1/9: Right to know, RTI Act identity and the information-public-authority vocabulary

CONSTITUTIONAL ROOT

Article 19(1)(a) right to receive information for democratic participation,
subject to lawful restrictions and competing rights.

RTI ACT, 2005

statutory request, proactive-disclosure, appeal, complaint and enforcement machinery.

INFORMATION

material in any form held by or under control of public authority,
including accessible private-body information under another law.

PUBLIC AUTHORITY

Constitution | parliamentary or State law | government notification/order
| substantially financed bodies and NGOs under section 2(h).

RIGHT TO INFORMATION

inspection | notes/extracts | certified copies | certified samples | electronic copies.

LIMIT

RTI gives access to existing covered records; it does not compel a new answer, opinion or record.

ASCII MASTER FLOW – PANEL 2/9: PIO-FAA-Commission chain, transfers and statutory timelines

PROACTIVE DISCLOSURE: SECTION 4

records and key information disclosed by default -> fewer individual requests.

REQUEST

PIO or SPIO receives | APIO forwarding adds five days where applicable.

No reasons required; only contact details needed for communication.

TRANSFER: SECTION 6(3)

to the concerned public authority as soon as practicable, within five days.

RESPONSE

ordinary: 30 days | life or liberty: 48 hours

| third-party process: decision within 40 days | delay: information free.

REMEDY CHAIN

PIO decision/deemed refusal -> First Appellate Authority, ordinarily 30 days

-> CIC or SIC second appeal, ordinarily 90 days.

TRAP

section 18 complaint and section 19 disclosure appeal are not interchangeable.

ASCII MASTER FLOW – PANEL 3/9: CIC and SIC composition, appointment committees, eligibility and jurisdiction

Chief Information Commissioner + up to ten Information Commissioners.

President appoints on committee advice:

Prime Minister + Lok Sabha Opposition Leader/substitute + Union Cabinet Minister.

SIC

State Chief Information Commissioner + up to ten State Information Commissioners.

Governor appoints on committee advice:

Chief Minister + Assembly Opposition Leader/substitute + State Cabinet Minister.

ELIGIBILITY

eminence in public life with knowledge/experience in listed fields.

DISQUALIFICATIONS

MP/MLA | office of profit | political party link | business or profession.

JURISDICTION

CIC for Central public authorities | SIC for State public authorities.

LIMIT

appointment committees do not make the commissions constitutional bodies.

ASCII MASTER FLOW – PANEL 4/9: 2019 amendment, current Rules, tenure and protected removal

2019 AMENDMENT

removed Act-fixed five-year term and Election-Commission-linked conditions
-> Central Government prescribes term, pay and service conditions by rules.

2019 RULES

ordinary term: three years | age ceiling: 65.
fixed current pay varies by office under the Rules.

REAPPOINTMENT

same office: barred; an Information Commissioner may become Chief,
subject to aggregate statutory maximum.

REMOVAL FOR PROVED MISBEHAVIOUR OR INCAPACITY

President for CIC officers | Governor for SIC officers
after Supreme Court inquiry.

DIRECT GROUNDS

insolvency | conviction involving moral turpitude | outside paid employment
| infirmity | prejudicial financial or other interest.

AUTONOMY CONCERN

executive rule-making now controls core conditions of adjudicators reviewing that executive.

ASCII MASTER FLOW – PANEL 5/9: Sections 18-20: complaint, appeal, inquiry, orders, compensation and penalty

SECTION 18 COMPLAINT

inability to file | refusal | no reply | unreasonable fee
| incomplete, misleading or false information -> inquiry on reasonable grounds.

INQUIRY POWERS

civil-court powers + direct inspection of covered records;
no record may be withheld from Commission on a statutory exemption claim.

SECTION 19 SECOND APPEAL

PIO bears burden to justify denial.
Commission may order disclosure and systemic compliance under section 19(8).
Orders bind within the statutory field, subject to constitutional review.

REMEDIES

compensation to complainant/appellant
| section 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000
| disciplinary recommendation.

DUE PROCESS

reasonable opportunity and statutory conditions precede penalty.

ASCII MASTER FLOW – PANEL 6/9: Exemptions, public interest, severability, third parties and security bodies

SECTION 8

specified protected interests; current section 8(1)(j) covers personal information.
Section 8(2) general public-interest override remains.

SECTION 9

copyright-based refusal where access would infringe copyright of a person other than State.

SECTION 10

sever exempt portion -> disclose reasonably separable remainder with reasons.

SECTION 11

third-party consultation procedure, not an independent exemption.

SECTION 24

listed intelligence/security organisations excluded,
except corruption allegations and human-rights information.
Human-rights disclosure requires Commission approval and uses a 45-day period.

PRIVACY CONTROL

current statute -> harm and public-interest analysis -> redaction -> reasoned order -> appeal.

ASCII MASTER FLOW – PANEL 7/9: Seven controlling decisions and the no-record-creation boundary

State of U.P. v. Raj Narain (1975)

democratic right to know public acts.

S.P. Gupta v. Union of India (1981)

open government and disclosure as democratic norm.

CBSE v. Aditya Bandopadhyay (2011)

evaluated answer books are information; authority need not create new information.

Chief Information Commissioner v. State of Manipur (2011)

complaint is not an automatic substitute for disclosure appeal.

RBI v. Jayantilal N. Mistry (2015)

no generic fiduciary shield for the regulator's inspection information.

Subhash Chandra Agarwal (2019)

CJI office is a public authority; privacy and transparency require balancing.

Anjali Bhardwaj v. Union of India (2019)

appointments must be timely and transparent; stale vacancy counts must be reverified.

ASCII MASTER FLOW – PANEL 8/9: Institutional comparison, backlog, digital RTI and reform architecture

RTI / SIC

statutory RTI complaints and second appeals; disclosure, compliance and personal-penalty powers.

COURT

constitutional/statutory judicial review; not a routine RTI first-instance forum.

PIO / FAA

departmental access decision and internal appeal; neither replaces Commission.

IMPLEMENTATION DEFICITS

vacancies + backlog + weak section 4 disclosure + record disorder
| uneven digital access + low penalty consistency + privacy uncertainty.

REFORM

advance vacancy calendar -> independent staff and budget
-> interoperable e-filing with offline access -> record digitisation
-> section 4 audit -> reasoned penalty practice -> privacy-redaction guidance.

LIMIT

technology accelerates routing only when records, accessibility and adjudicatory capacity exist.

ASCII MASTER FLOW – PANEL 9/9: Current-law caveats, PYQ route, traps and transparency synthesis

DATED CONTROL: 24 AUGUST 2026

DPDP section 44(3) substituted section 8(1)(j) from 13 November 2025.

Section 8(2) remains; no unverified stay or final constitutional outcome is asserted.

PYQ ROUTE

2020 GS-II -> 2019 amendment and autonomy of Information Commissions.

PRELIMS FIREWALL

statutory != constitutional court | complaint != second appeal

| binding order != no judicial review | PIO penalty != ministry fine

| third-party procedure != exemption | section 24 != absolute exclusion

| RTI record != new explanation.

MAINS SPINE

right-to-know root -> access chain -> independent commission design

-> inquiry and appeal powers -> exemptions and privacy

-> implementation deficit -> transparent appointments, records and reasoned balancing.